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|     |                                                    | <p>demurrer is permitted, as this case is still in the early stages.</p> <p>Defendant's Motion to Vacate Default was timely filed within six months of the entry of default. The Court finds that Defendant's failure to timely file a demurrer has not caused any prejudice to Plaintiff. Defendant was given until 5/11/26 by Plaintiff and Defendant did not wholly neglect his responsibility to do so. Instead, he attempted to act timely by filing the motion for leave to file a late demurrer within the deadline imposed by Plaintiff. Further, the Court finds Defendant's failure to timely file a demurrer because he instead pursued a special motion to strike appears reasonable and excusable. Thus, in light of the policy of resolving any doubts in favor of the party seeking relief, Defendant's Motion to Vacate Default and Motion for Leave to File Demurrer are GRANTED.</p> <p>Defendant's request to stay all discovery pending resolution of the demurrer is DENIED. While discovery was stayed pending resolution of the anti-SLAPP motion pursuant to statute, there is no basis for Defendant's request for a stay with regard to the demurrer.</p> <p>Defendant is ORDERED to file and serve his demurrer within 10 days upon notice of this order.</p> <p>Moving party to give notice.</p> |
| 113 | National Funding v. Firstclassrides, 2025-01499184 | <p>MOTION FOR SUMMARY JUDGMENT – GRANTED</p> <p>Plaintiff NATIONAL FUNDING, INC. ("Plaintiff") moves for an order granting summary judgment against Defendants FIRSTCLASSRIDES LLC dba FIRST CLASS RIDES and ANTONIO GRAVES (collectively, "Defendants") as to the claims alleged against them by Plaintiff.</p> <p>7/23/2025 Plaintiff filed a Complaint against Defendants for Breach of Contract.</p> <p>The requisite elements for a prima facie showing of breach of contract are (1) existence of a contract, (2) the plaintiff's performance or excuse for non-performance, (3) defendant's breach, and (4) damage to plaintiff therefrom. (See Wall Street Network, Ltd. v. New York</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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|  | <p>Times Co. (2008) 164 Cal.App.4th 1171, 1178.) A valid contract based on consideration is presumed when the contract is reduced to writing. (See Civ. Code, § 1614.)</p> <p>Plaintiff argues that on or about January 1, 2025, Defendants executed and delivered to Plaintiff a Settlement Agreement (the “Settlement Agreement”), whereby Defendants agreed to pay \$120,120 to Plaintiff in exchange for a release of claims against them regarding the failure to repay sums due under two loan agreements. (Separate Statement of Undisputed Material Facts (“SSUMF”), ¶ 1.)</p> <p>The Settlement Agreement provided for a total payment obligation of \$120,120 to be paid by Defendants to Plaintiff via consecutive weekly installment payments of \$1,155 starting December 27, 2024 and continuing every week until the settlement amount was repaid in full. (SSUMF, ¶ 2.)</p> <p>Defendants defaulted on the Settlement Agreement several times by failing to make payments when due. This included but was not limited to weekly payments due on January 3, 2025, January 10, 2025, January 17, 2025, January 24, 2025, February 21, 2025, February 28, 2025, March 7, 2025, March 14, 2025, April 18, 2025, April 25, 2025, May 9, 2025, May 16, 2025, May 23, 2025, May 30, 2025, June 13, 2025, and June 20, 2025. (SSUMF, ¶ 3.)</p> <p>After Defendants failed to make a \$1,200 payment via credit card in an attempt to get partially caught up on several missed weekly payments, Plaintiff elected to declare a breach of the Settlement Agreement on or about July 23, 2025. (SSUMF, ¶ 4.)</p> <p>Upon Defendants’ breach of Settlement Agreement, the entire outstanding balance of \$112,177.50 was made due and payable. (SSUMF, ¶ 5.)</p> <p>Plaintiff has demanded payment from Defendants for the amount due under the Settlement Agreement. (SSUMF, ¶ 6.) Despite Plaintiff’s demand, Defendants</p> |
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|     |                                  | <p>have both failed to pay the amounts due under the Settlement Agreement. (SSUMF, ¶ 7.)</p> <p>Plaintiff argues Defendants breached the terms of the Settlement Agreement by failing to timely make several of their weekly payments of \$1,155, and by failing to make a \$1,200 catch up payment despite representing that such payment would be made. (SSUMF, ¶¶ 3-5.) As a result of Defendants’ breach of the Settlement Agreement, \$112,177.50 remains due and payable. (SSUMF, ¶ 5.)</p> <p>Here, Plaintiff has set forth the terms of the Settlement and attached the Settlement Agreement as Ex. 1 to the Declaration of Sandra Otero. The Otero Declaration establishes Defendants have breached the agreement. (See Decl. of Otero ¶¶ 5-7, Ex. 1 and 2.) There remains an outstanding settlement balance in the amount of \$112,177.50.</p> <p>Plaintiff sustained its initial substantive burden to establish each element of the cause of action (CCP §437c(p)(1)), thus shifting the burden to Defendants to establish the existence of a triable issue of material fact. Defendants having failed to file any opposition failed to sustain their burden and the motion is thus GRANTED.</p> <p>Plaintiff to give notice and prepare a proposed order and a proposed judgment.</p> |
| 114 | Sanchez v. Hopper, 2025-01485565 | <p><b>MOTION TO BE RELIEVED AS COUNSEL – DENIED WITHOUT PREJUDICE</b></p> <p>DK Law (“Moving Counsel”), moves to be relieved as Counsel of Record for Plaintiff, Fabian Yopihua Sanchez. The Motion to be Relieved as Counsel of Record is DENIED, without prejudice.</p> <p>The instant motion to be relieved as counsel of record originally came on for hearing on August 10, 2026. The Court ordered counsel to file a proof of service and a proposed order for the Court’s signature.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |